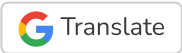


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JUSTIN MERTIS BARBER, APPELLANT, V. STATE OF FLORIDA, APPELLEE.

SAWAYA, J.

Justin Barber was convicted of first-degree murder with a firearm for the killing of his wife and sentenced to life in prison. He appeals the judgment and sentence, claiming that the trial court erred in denying his motion for judgment of acquittal because the evidence at trial, which was wholly circumstantial, did not exclude every reasonable hypothesis of innocence.

We note these facts because Barber also raises the issue that the trial court erred in denying his motions in limine directed at precluding the State from introducing evidence of (a) his extramarital affairs; (b) his computer search of the terms mentioned; and (c) the \$2 million life insurance policy insuring the lives of Barber and his wife. Barber further claims that the trial court erred in denying his request to interview the jurors to determine whether they had been tainted by exposure to extensive media coverage and Court TV commentary about the case. As to these issues, we affirm without further discussion.

In the penalty phase of the trial (the *Spencer* hearing), the State presented argument in support of the three statutory aggravators: Barber refused to offer mitigating evidence

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penalty be imposed. The trial court considered the evidence and the State's arguments and found: (1) the murder was at least partially motivated by pecuniary gain (medium weight); and (2) the murder was committed in a cold, calculated, and premeditated manner (great weight). However, as to whether the crime was heinous, atrocious, and cruel (H.A.C.), the court found that the State did not prove this aggravator beyond a reasonable doubt because the State did not sufficiently prove that Barber attempted to drown his wife before he shot her. Specifically, the trial court found that Barber may have shot her at the water's edge, causing her to fall into the water, and then dragged her to where her body was found by the police. Despite the jury's recommendation, the trial court imposed a life sentence. Barber appeals, claiming that the trial court erred in denying his motion for judgment of acquittal.

Because this is a purely circumstantial evidence case, a special standard of review applies to our analysis. The Florida Supreme Court has consistently explained that special standard a number of times. In (Fla. 2006), *cert. denied*, ___ U.S. ___, **127 S.Ct. 2981, 168 L.Ed.2d 711** (2007), the court reiterated:

In reviewing a motion for judgment of acquittal, a de novo standard of review applies. (Fla. 2002), [**123 S.Ct. 2278, 156 L.Ed.2d 137**] (2003). Generally, an appellate court will not reverse a conviction that is supported by competent, substantial evidence. (citing (Fla. 1998); (Fla. 1996)). There is sufficient evidence to sustain a conviction if, after viewing the evidence in the light most favorable to the State, a rational trier of fact could find the existence of the elements of the crime beyond a reasonable doubt. (Fla. 1999). "A motion for judgment of acquittal should be granted in a circumstantial evidence case if the state fails to present evidence from which the jury can exclude every reasonable hypothesis except that of guilt." (Fla. 1996).

"The question of whether the evidence fails to exclude all reasonable hypotheses of innocence is for the jury to determine, and where there is substantial, competent evidence to support the jury verdict, we will not reverse." (Fla.) (quoting (Fla. 1989)), *cert. denied*, **537 U.S. 848** [**123 S.Ct. 190, 154 L.Ed.2d 78**] (2002). In meeting its burden, the State is not required to "rebut conclusively, every possible variation of events" which could be inferred from the evidence, but must introduce competent evidence which is inconsistent with the defendant's theory of events. (quoting). Once the State meets this threshold burden it becomes the jury's duty to determine whether the evidence is sufficient to exclude

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....

This Court does not have to determine that every reasonable hypothesis of innocence was excluded in this case. The sole determination we must make is whether there was competent, substantial evidence for the jury to make such a determination. (citing).

Id. at 645-46 (quoting (Fla. 2003)), *cert. denied*, **541 U.S. 946**, **124 S.Ct. 1676**, **158 L.Ed.2d 372** (2004); (Fla. 2004), *cert. denied*, **545 U.S. 1107**, **125 S.Ct. 2546**, **162 L.Ed.2d 280** (2005). In (Fla. 1996), *cert. denied*, **519 U.S. 1079**, **117 S.Ct. 742**, **136 L.Ed.2d 680** (1997), the court further explained that

the sole function of the trial court on motion for directed verdict in a circumstantial-evidence case is to determine whether there is prima facie inconsistency between (a) the evidence, viewed in the light most favorable to the State and (b) the defense theory or theories. If there is such inconsistency, then the question is for the finder of fact to resolve. The trial court's finding in this regard will be reversed on appeal only where unsupported by competent substantial evidence.

The penalty phase proceedings are distinct from the guilt phase of a murder trial, and this distinction is clearly expressed in section 921.141(1), Florida Statutes (2002), which provides in pertinent part:

The penalty phase is intended to determine the sentence to be imposed in a capital case after a verdict of guilt has been rendered; it is not intended to determine the guilt of the defendant. Unlike the guilt phase of a capital trial, the rules of evidence are relaxed in the penalty phase of the proceedings. The trial court's finding as to one or more aggravators in the penalty phase is not intended to override the jury's verdict in the guilt phase of the proceedings, and there is nothing to suggest that is what the trial court intended to do in the instant case.

We also note that the finding made by the trial court in support of its refusal to apply

trary to Barber's argument. The trial court's finding, that there was insufficient evidence to prove beyond a reasonable doubt that Barber attempted to drown his wife before he shot her, relates only to the manner of the killing. The manner in which the murder was accomplished is a critical consideration when determining the applicability of the H.A.C. aggravator, which applies where the victim was mentally or physically tortured by the murderer in an attempt to inflict a high degree of pain and suffering before the victim's life is taken. (Fla. 2007); (Fla.), *cert. denied*, **488 U.S. 871** (1988) ("The factor of heinous, atrocious and cruel arises from the means actually employed in the killing. . . ."); (Fla.) (holding that the H.A.C. aggravator may be established where a victim is conscious for between 30 seconds and a minute before drowning and there is evidence of a struggle such as evinces an awareness of impending death), *cert. denied*, **540 U.S. 1054** (2003); (Fla. 1997) (holding that H.A.C. aggravator was appropriately found in drowning death, regardless of whether the victim was conscious when she was thrown into canal, because there was other evidence of a struggle). We therefore reject Barber's argument that the finding regarding this aggravator applied to the issue whether the evidence was sufficient to rebut Barber's hypothesis of innocence that someone else killed his wife.

As to our de novo review of the record before us, we conclude that when viewed in the light most favorable to the State, the evidence the State introduced at trial is inconsistent with Barber's theory of events. Because such an inconsistency was established, the trial court correctly let the jury decide whether the evidence excluded all reasonable hypotheses of innocence. The jury heard all of the testimony and considered all of the evidence presented in the guilt phase of the trial and determined that all reasonable hypotheses of innocence were excluded. Concluding that substantial, competent evidence exists in the record to support the jury's verdict, we affirm Barber's conviction and his sentence.

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No. 5D06-3529. '12 (Mar 6, 2009)

PALMER, C.J., and GRIFFIN, J., concur.

PKMKB

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